

Om Prakash v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 January 2019 · WRIT - C No. 43630 of 2018 · **Writ disposed; disputed bills relegated to clause 6.5; recovery stayed pending EE decision.**

HEADNOTE

A writ to quash a recovery citation for electricity dues, on the plea that the amount had already been deposited, was disposed of without examining the bill on merits. Disputed bills lie under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer/Prescribed Authority. Recovery under the citation was kept in abeyance until that decision, subject to a timely representation.

FACTUAL SUMMARY

Om Prakash petitioned the Allahabad High Court to quash a recovery citation dated 6 December 2018 demanding Rs.1,11,134 as electricity dues. He claimed he had already deposited Rs.1,12,546 on 25 August 2018 and that nothing remained outstanding. The respondents included the State of Uttar Pradesh and officers of Purvanchal Vidyut Vitaran Nigam Ltd., Electricity Distribution Division II, Allahabad. The Court treated the controversy as one of disputed bills and did not adjudicate the deposit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bills

HOLDING

A writ seeking quash of a recovery citation for electricity dues, where the consumer asserts the amount has already been deposited, is a disputed-bill controversy. The consumer has a remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ court will direct the Executive Engineer/Prescribed Authority to consider and decide a representation within 15 days; recovery under the citation remains in abeyance until that decision, but the interim protection automatically vacates if the representation is not submitted in time. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S DEPOSIT OF RS.1,12,546 DISCHARGED THE DUES CLAIMED IN THE RECOVERY CITATION DATED 6 DECEMBER 2018

Left for decision by the Executive Engineer/Prescribed Authority on a clause 6.5 representation. ¶ 1